

notices for creditors and others (*d*) to send in their claims as would have been given by the Court of Chancery, may at the expiration of the time named in the notices proceed to distribute the estate, without being liable for any claim of which they *shall not have had notice* at the time of distribution (*e*). [And the above provisions in Sir George Turner's Act, and the amending Act, have since been repealed (*f*).]

57. **Jurisdiction of County Courts.**—By 28 & 29 Vict. c. 99, administration suits and suits for the execution of trusts and proceedings under the Trustees Relief Act, or the Trustee Acts, may be instituted in the *County Courts* where the *value does not exceed 500l.* (*g*)

(*d*) This includes the claims of next of kin under an intestacy, *Newton v. Sherry*, 1 C. P. D. 246.

(*e*) Sums appropriated by executors and retained by them as trustees are moneys distributed and cease to be assets, *Clegg v. Rowland*, 3 L. R. Eq. 368. Executors, to entitle themselves to the protection of the Act, must insert advertisements in the *London Gazette*, as well as in local papers, *Wood v. Weightman*, 13 L. R. Eq. 434; and executors after dis-

tribution are bound to give all proper information to unpaid creditors, or they will be deprived of their costs in suits by such creditors, *In re Lindsay*, 8 I. R. Eq. 61.

[(*f*) 46 & 47 Vict. c. 49.]

(*g*) The County Courts Acts Amendment Act, 30 & 31 Vict. c. 142, s. 8, [and 36 & 37 Vict. c. 66, s. 67, enable] parties to apply at chambers for transfer of a suit pending in the High Court, affecting property not exceeding 500*l.* to a County Court.